

JUSTIFICATION FOR FULL AND OPEN COMPETITION
SOLICITATION SPE7M221R0030

[X] ORIGINAL

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

ITEM DESCRIPTION	NSN	AMC/ASMC	QTY	Estimated Value
RIGHT VENTED CYLINDER	1720-01-285-7190	1 C	3	
LEFT VENTED CYLINDER	1720-01-285-7189	1 C	4	

Identify end item, weapon system, or class of item: These NSNs 1720-01-285-7190/ 1720-01-285-7189 are described as a Right and Left Vented Cylinder. Each have a special procedures code of "01". It is the "vented" variant of the Steam Catapult Launch Cylinders for the Catapult Launch systems for the U.S Aircraft carriers. The vented cylinders dissipate the steam energy used to launch aircraft off the carrier deck. The WSDC code listed on the Integrated Data Sheet is (82N) Aircraft Launch and Recovery Equipment (ALRE).

This item is listed as being a Critical Safety Item (CSI) and will be solicited for a firm fixed price contract.

ESTIMATED VALUE: \$

4. The statutory authority permitting other than full and open competition is:
[X] 10 U.S.C. 2304(c)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code: CAGE (1P555) Precision Custom Components, CAGE (20722) The Entwistle Company, CAGE (1TG13) Chalmers & Kubeck, Inc., CAGE (81A16) York Precision Machining and Hydraulics and CAGE (95169) Curtiss-Wright Flow Control Corporation Target Rock Division. The NAVAIR part numbers assigned to these NSNs are 622259-1R and 622259-1L. These items require first article testing to be approved by NAVAIR as well as special testing and Quality conformance. Pursuant to NAVAIR, the sources listed above are manufacturers that have the appropriate manufacturing expertise and quality capabilities. Although the government possesses drawings for this part, it is necessary to limit competition to these companies with engineering source approval by the design control activity in order to maintain the quality of the part.

NAVAIR established the ALRE Flight Safe Program, which governs the life-cycle management of ALRE Critical Safety Items (CSI) and Critical Application Items (CAI). These items, as determined by NAVAIR, are essential to weapons system performance and the preservation of life and the safety of operational personnel. ALRE CSI and CAI are identified in the DLA Enterprise Business Systems (EBS) Material Master, Classification Tab, CIM sub-tab, with a Special Procedures Code (SPC) of "01." NAVAIR designates ALRE items as CSI or CAI through the Navy Joint Deficiency Reporting System, which feeds the code (SPC-01) into EBS. Technical Data Requirements (TDR) containing a list of approved sources, as designated by NAVAIR and NAVSUP, are required for all such items. When an ALRE item is coded SPC-01, DLA procures as

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instructed per the TDR from the list of approved sources in accordance with NAVAIRISNT 13800.18A. It is essential to the integrity of the ALRE Flight Safe Program and critical to naval aviation safety that DLA only procure the product of an approved source.

In addition, NAVAIR INST 4200.56 states the following with regard to sources. Per references (a) and (g), a CSI shall be purchased or repaired and/or overhauled only from sources approved by the TA. References are as follows: (a) Public Law 108-136, Sec. 802, Quality Control in Procurement of Aviation Critical Safety Items and Related Services and (g) SECNAVINST 4140.2.

AMC/AMSC codes for each NSN were reviewed by the Product Specialist of record on September 29, 2021. Pursuant to FAR 6.303-2(c), the Product Specialist of record certified that the supporting data, including the AMC/AMSC codes and approved sources are complete and accurate. It is noted that the Naval Warfare Center (80020) is listed on the PS certification because the Cage is listed on the Technical Data Requirements (TDR) from NAVAIR. (See ATT. 1 – FAR 6.303-2 (c) SUPPORTING DATA CERTIFICATIONS)

The use of the authority cited below:

[X] AMC 1. Suitable for competitive acquisition for the second or subsequent time.

The use of the authority cited is based on:

[X] AMSC C. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid. The weapon system indicator code is F "failure will render end item inoperable". As such, acquisition from the currently approved sources is required to maintain the quality of the part.

Pursuant to the engineering and design activity, Naval Air Systems Command (NAVAIR) the sources cited in paragraph 5 have the appropriate knowledge, manufacturing expertise and quality capabilities to supply this NSN. This is a flight critical safety item and in accordance with DFARS 209.270, DLA must procure this item only from those sources approved by the design control activity.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] A Sources Sought notice was posted to Sam.gov/Contract Opportunities on September 20, 2021 for 5 business days with an attached market survey. The Sources Sought notice produced one (1) response. The acquisition will be synopsisized on or about October 29, 2021 for 15 days to Sam.gov/Contract Opportunities prior to the solicitation opening. At completion of the synopsis period, this PR will be solicited on the internet for 30 days via the DLA Internet Bid Board System (DIBBS).

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. Certified Cost and Pricing Data will be required if only one offer is received and the total price exceeds \$2 Million, FAR 15.403-4. If

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it does not exceed \$2 Million, Other than Certified Cost and Pricing Data may be required. The Acquisition Specialist will request assistance from the DLA Land and Maritime Pricing Office as necessary. A price analysis will be conducted with usage of the BLS Producer Price Index (PPI) and the learning curve analysis.

8. Market Research/Efforts to Obtain Competition:

Market Survey [10 U.S.C. 2304(f)(3)(D)]:

Total number of vendors contacted: 5

Names of vendors contacted and responding: The Acquisition Specialist provided a market survey to the NAVAIR approved sources. A response was received from three (3) sources.

Techniques used to conduct survey:

- Posted a Sources Sought on September 20, 2021 for 5 business days with attached market survey to Sam.gov/Contract Opportunities.
- Emailed a questionnaire to the approved sources.
- Internet Search.
- Review of technical documents and past buys.

Types of information requested: Business size, estimated price and delivery, economical quantities, commerciality, purpose and function, and capability to provide Certified Cost and Pricing Data.

Summary of information received: Received three (3) responses to the questionnaire. The Sources Sought produced one (1) response.

CAGE (70JV3) General Manufacturing LLC. General Manufacturing's market survey was in response to the Sources Sought notice. They are a small business with 80 employees. Its parent company is Power Plant Services. General Manufacturing states this item is commercial. [REDACTED]

CAGE (20722) The Entwistle Company will not participate.

CAGE (81A16) York Precision Machining and Hydraulics will not participate.

CAGE (95169) Curtiss-Wright Flow Control Corporation Target Rock Division. Non-responsive to the request to complete the market survey.

CAGE (1P555) Precision Custom Components, LLC (PCC) is a small business manufacturer with 260 employees. The parent company is Cage (75SR7) Precision Components Group, LLC. The item is not commercial and does not appear on a GSA Schedule. [REDACTED]

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[REDACTED]

[REDACTED]

Commerciality: Review of the Material Master (MM03) indicates that this NSN has an AMC/AMSC rating of 1/C. In the material master the Commercial Off the Shelf is blank. There is no evidence that these two (2) NSNs are available on the commercial market nor is it of a type customarily used by the general public or by non-governmental entities for purposes other than government or military purposes as defined in FAR 2.101. The NSNs or their part numbers are not found on the internet; nor do they appear on GSA Advantage. These Cylinders are exclusively used with aircraft launch and recovery equipment. Market research with an approved manufacturer and the technical information provided by the Product Specialist do not identify this item as commercial. After review of all the information regarding commerciality of the items, the Contracting Officer has determined that they are not commercial.

9. Additional facts supporting other than full and open competition are:

[X] Other: (Explain) This is a Critical Safety Item with a Special Procedures Category (SPC) code of "01". Naval Air Systems Command, Lakehurst (NAVAIR) is the design control activity and determines which manufacturers are capable of producing the item to its CSI requirements. The components being acquired under this solicitation have been classified as "critical" requiring engineering source approval by Naval Air Systems Command (NAVAIR). Only those companies who have submitted requests for source approval and have been approved will be eligible for award. Any manufacturers that are not approved by NAVAIR will be required to submit a Source Approval Request (SAR) Package for the Navy ESA to approve for future procurements.

10. A listing of sources, if any, indicating an interest in the acquisition is: CAGE (1P555) Precision Custom Components and CAGE (70JV3) General Manufacturing LLC.

11. The following actions are being taken to identify additional sources:

[X] Other (Explain): Any manufacturers or vendors who would like to pursue source approval will need to receive Source Approval guidance for submission to the design activity, NAVAIR, and the DLA Competition Advocate's Office.

[X] the solicitation contains DLA Procurement Notes L04 Offers for Part Numbered Items and M06 Evaluation of Offers for Part Numbered Items.

12. Prior J&A's are attached for SPE7M219C0010 which resulted from solicitations SPE7M218R0020 and SPE7M218R0030. (See ATT. 2)

ATTACHMENTS:

ATT. 1 – FAR 6.303-2 (c) SUPPORTING DATA CERTIFICATION
ATT. 2 – J&A SPE7M218C0044

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

MCCORMICK.STEPHANIE.J.1230261160
Digitally signed by MCCORMICK.STEPHANIE.J.1230261160
Date: 2021.10.27 13:09:42 -04'00'
Stephanie J. McCormick/Contracting Officer

APPROVAL/CERTIFICATION

I have reviewed and approve this justification: [REDACTED]

SHEARER.MARY.E.1250702449
Digitally signed by SHEARER.MARY.E.1250702449
Date: 2021.11.01 07:57:35 -04'00'

Mary Shearer/Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

- | | |
|---|------------------------------------|
| ☐ Up to \$750,000 | Contracting Officer |
| ☒ \$750,000 to \$15,000,000 | Competition Advocate |
| ☐ \$15,000,000 to \$100,000,000 | Head of Contracting Activity (HCA) |
| ☐ \$100,000,000 | Senior Procurement Executive (AQ) |